

MOTOR INSURANCE CLAIM FORM

CIVIL LIABILITY

Claim No.: RC-2026-000211

Type: RC — CIVIL LIABILITY

Insurer: Seguros Meridiano, S.A.

STATUS: ACTIVE LITIGATION — LEGAL HOLD

■ **NOTICE:** This claim involves an active judicial proceeding before the Juzgado de Primera Instancia Civil del Distrito Nacional (Civil Court of First Instance). All documentation related to this file must be preserved under legal hold. No settlement may be made without prior written approval from Seguros Meridiano Legal Department and external counsel.

1. POLICYHOLDER (DEFENDANT)

Full Name:	Eduardo José Núñez Taveras
ID / Cédula:	005-9012345-6
Address:	Calle Santiago 401, Piantini, Santo Domingo
Phone:	+1 (809) 412-7755
Policy Number:	POL-SDQ-2021-078834
Coverage Type:	Third-Party Liability + RC Legal Defense
Legal Defense Limit:	DOP 1,500,000
Bodily Injury Limit:	DOP 2,000,000
External Counsel Assigned:	Bufete Guerrero & Asociados — Dr. Miguel Guerrero Soto

2. INSURED VEHICLE

Make / Model:	BMW 320i Sport
Year:	2023
License Plate:	H-445566
VIN:	WBA5R1C51NEM12345
Driver at Time of Incident:	Eduardo José Núñez Taveras (policyholder)

3. PLAINTIFF / INJURED PARTY

Full Name:	Carmen Dolores Herrera Abad
ID / Cédula:	006-1234567-9
Age:	52 years
Address:	Calle El Pedregal 77, Los Mina, Santo Domingo Este
Plaintiff's Attorney:	Dr. Rosanna Félix Alonzo — Bufete Félix & Méndez
Relationship to Insured:	None — unknown pedestrian

4. INCIDENT DETAILS

Incident Date:	April 3, 2026
Incident Time:	20:14
Location:	Av. Abraham Lincoln, in front of Centro Médico UCE, Piantini, Santo Domingo
Weather:	Clear — artificial lighting functional
Police Report No.:	PN-SDQ-2026-022109
AMET Report No.:	AMET-SDQ-2026-00887

5. INCIDENT NARRATIVE

On April 3, 2026, at approximately 20:14, the insured Eduardo José Núñez Taveras was driving southbound on Av. Abraham Lincoln. Mrs. Carmen Dolores Herrera Abad was crossing the avenue at the marked pedestrian crosswalk in front of Centro Médico UCE. According to the AMET reconstruction report, the insured's vehicle was travelling at an estimated 58 km/h in a 40 km/h zone. The vehicle struck the pedestrian at the center of the crosswalk. Mrs. Herrera was transported by ambulance to Centro Médico UCE, where she was admitted with multiple injuries including a fractured right femur, two broken ribs, and a concussion. She was hospitalized for 19 days and subsequently underwent physiotherapy. The insured remained at the scene, submitted to a breathalyzer test (result: 0.00 g/L), and was issued a traffic citation for exceeding speed limits. On May 10, 2026, the plaintiff filed a civil liability suit through Bufete Félix & Méndez.

6. JUDICIAL PROCEEDING DETAILS

Court:	Juzgado de Primera Instancia Civil del Distrito Nacional — 3rd Chamber
Case No.:	CIV-2026-04-01133
Filing Date:	May 10, 2026
Hearing Date (1st):	June 18, 2026
Claim Filed (DOP):	3,850,000
Breakdown of Claim:	Medical expenses: DOP 680,000 / Lost wages (1 year): DOP 420,000 / Pain & suffering: DOP 1,500,000 / Future physiotherapy: DOP 350,000 / Legal fees (plaintiff): DOP 200,000 / Punitive damages requested: DOP 700,000
Insurer Position:	Liability acknowledged. Contesting punitive damages and quantum of pain & suffering. Settlement negotiations initiated.

7. MEDICAL DOCUMENTATION SUMMARY

Hospital:	Centro Médico UCE — admission April 3–22, 2026
Diagnoses:	Fractura diafisaria fémur derecho (closed), fracture ribs 6 & 7 (left), mild concussion (GCS 14 on admission)
Surgeries:	Open reduction and internal fixation (ORIF) right femur — April 5, 2026
Physiotherapy:	Ongoing — 3x/week, estimated 14 months total
Medical Leave Certified:	210 days (7 months) from attending physician

Permanent Disability:	Independent medical examiner assessment pending — scheduled June 5, 2026
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8. DOCUMENTS SUBMITTED

- Insured's national ID and driver's license
- BMW registration and insurance certificate
- Police report PN-SDQ-2026-022109
- AMET speed and accident reconstruction report AMET-SDQ-2026-00887
- Breathalyzer test result (negative) — issued by PN officer
- Hospital admission and discharge records — Centro Médico UCE
- Surgical report — ORIF right femur
- Physiotherapy prescription and 2-month progress report
- Medical leave certification — Dr. José Almonte, orthopedic surgeon
- Plaintiff's civil lawsuit filing — Case CIV-2026-04-01133
- Court hearing summons — June 18, 2026
- Engagement letter — Bufete Guerrero & Asociados
- 6 photographs of accident scene (skid marks, crosswalk, vehicle position)
- CCTV footage from Centro Médico UCE parking — obtained by AMET

9. LEGAL STRATEGY NOTE (CONFIDENTIAL)

External counsel Dr. Guerrero recommends accepting liability and pursuing early settlement to avoid punitive damages exposure (DOP 700,000). Initial settlement offer to be made at DOP 2,100,000. If rejected, full defense at trial. Independent medical examiner (Dr. Pérez) to assess permanent disability percentage ahead of June 18 hearing. Policy limit (DOP 2,000,000 bodily injury) may be insufficient if punitive damages are awarded — excess exposure to be flagged to reinsurance desk.

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Policyholder	External Counsel	Seguros Meridiano Legal Dept.